

24STCV29911 24STCV29911

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-08-10

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Case Number: 24STCV29911 Hearing Date: August 10, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV29911

IMHOFF

& ASSOCIATES, PC, A PROFESSIONAL CORPORATION v. MILLER MARKETING GROUP,
INC., A CALIFORNIA CORPORATION, et al.

August

10, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT AND CROSS-COMPLAINANT MILLER MARKETING GROUP, INC.'S MOTION TO DEEM
REQUEST FOR ADMISSIONS, SET ONE, PROPOUNDED ON CROSS-DEFENDANTS VINCENT IMHOFF,
IMHOFF & ASSOCIATES, PC, AND THOMAS PRYOR ADMITTED; REQUEST FOR MONETARY

SANCTIONS AGAINST CROSS-DEFENDANTS AND THEIR COUNSEL IN THE AMOUNT OF \$4,650.00.

RULING:

The Motion is denied as to the request to deem admitted and granted as to the request for sanctions.

On or before September 11, 2026, Cross-Defendants VINCENT IMHOFF, IMHOFF & ASSOCIATES, PC, and THOMAS PRYOR, and Akerman LLP, jointly and severally, shall pay discovery sanctions in the sum of \$4,560.00 to Defendant and Cross-Complainant MILLER MARKETING GROUP, INC., the Court finding an absence of substantial justification. (E.g., Code Civ. Proc., § 2023.030.)

Defendant/Cross-Complainant to give notice.

I.

BACKGROUND

The Court incorporates by reference the Background section of the Minutes entered January 27, 2026.

On May 30, 2025, Defendant and Cross-Complainant MILLER MARKETING GROUP, INC. filed the Motion to Deem Admitted, because Cross-Defendants failed to respond. Additionally, the Motion includes a request for monetary sanctions against them and their counsel.

Cross-Defendants' Opposition states that verified responses were served on June 12, 2025.

I.

LEGAL STANDARD

"[A] motion to have admission requests deemed admitted may not be granted where the record establishes ... that (1) proposed responses to the requests have been served

prior to the hearing on the motion and (2) such responses are in substantial compliance with the provisions of section 2033, subdivision (f)(1).” (Tobin v. Oris (1992) 3 Cal.App.4th 814, 828, overruled on other grounds by Wilcox v. Birtwhistle (1999) 21 Cal.4th 973, 983, fn.12.)

II.

ANALYSIS

Defendant/Cross-Complainant

reports that each Cross-Defendant failed to provide any verified response to the Requests for Admission, Set One, in violation of Code of Civil Procedure sections 1013(c) and 2031.260, subdivision (a).

“Under Code of Civil

Procedure section 2033.280, it is mandatory that the court impose a monetary sanction on the party or attorney whose failure to serve a timely response to a request for admission necessitates a motion to compel responses....” (Stover v. Bruntz (2017) 12 Cal.App.5th 19, 31–32. Accord Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 635.)

Here, the Motion

adequately shows Cross-Defendants’ failures to serve responses to Requests for Admission. However, Cross-Defendants’ Opposition shows that responses in substantial compliance were served before this hearing date.

As a result, under

section 2033.280, requests cannot be deemed admitted, but sanctions are mandatory.

Additionally, Cross-Defendants

report that counsel for Defendant/Cross-Complainant has indicated that it can no longer represent that party, from which Cross-Defendants infer that there is no authority for the entity to proceed as a self-represented litigant. However, the Motion was filed during attorney representation, such that it remains valid. Additionally, attendance is not required at the hearing to obtain the ruling. Where law prohibits a party from appearing as a self-represented litigant, arguments and court filings, made in that capacity, are nullities. (Hansen v. Hansen (2003) 114 Cal.App.4th 618, 622.)

III.

CONCLUSION

Therefore, the Court grants
the Motion only as to sanctions.